



CHAPTER 74.

An Act to amend the Law with respect to the Superannuation Allowances payable to the Metropolitan Police Magistrates, the Dublin Divisional Justices and the Stipendiary Magistrate for Chatham and Sheerness. A.D. 1915.
[29th July 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Subject to the provisions of this Act the Treasury, on the recommendation of the Secretary of State, may, on the retirement of a police magistrate to whom this Act applies, grant to him a superannuation allowance not exceeding the following scale, that is to say :—

Superannuation allowances to police magistrates.

- (a) to a magistrate who has served five years and upwards and under six years, an annual allowance of fifteen-sixtieths of the annual salary of his office ;
- (b) to a magistrate who has served six years and under seven years, an annual allowance of sixteen-sixtieths of such salary ;
- (c) in like manner a further additional allowance to the annual allowance of one-sixtieth in respect of each additional year of such service until the completion of a period of service of thirty years, when an annual allowance of forty-sixtieths may be granted, and no addition shall be made in respect of any service beyond thirty years.

(2) A superannuation allowance under this Act shall be computed upon the amount of the salary enjoyed by the magistrate at the time of his retirement, unless he has been in receipt of that amount for less than three years, in which case it shall be computed on the average amount of salary received

A.D. 1915. — by him during the three years immediately preceding the date of his retirement.

(3) It shall not be lawful to grant any superannuation allowance, under the provisions of this Act, to any magistrate who is under sixty years of age, except upon a medical certificate to the satisfaction of the Secretary of State that he is incapable, from infirmity of mind or body, to discharge the duties of his office, and that such incapacity is likely to be permanent.

(4) Any sums payable on account of superannuation allowances under this Act shall be charged on and paid out of the Consolidated Fund of the United Kingdom or the growing produce thereof, and shall be paid to a person entitled thereto at such times in every year as the Treasury may determine.

(5) A person to whom a superannuation allowance has been granted under this Act before he has attained the age of sixty years shall, until he has attained that age, be liable to be called upon to fill any public office or situation under the Crown in the United Kingdom for which his previous public services may render him eligible; and if he declines, when called upon to do so, to take upon him such office or situation, or declines or neglects to execute the duties thereof satisfactorily, being in a competent state of health, he shall forfeit his right to the superannuation allowance which has been granted to him.

(6) The decision of the Treasury on any question which arises as to the application of any provision of this Act to any person, or as to the amount of any superannuation allowance under this Act, or as to the reckoning of any service for such an allowance, shall be final.

(7) The police magistrates to whom this Act applies are all persons appointed after the passing of this Act to be metropolitan police magistrates, or divisional justices of the police district of Dublin metropolis, or stipendiary magistrate for Chatham and Sheerness, and any person appointed before the passing of this Act to any such office, if he was appointed on or after the eighteenth day of September nineteen hundred and fourteen and, within one month after the passing of this Act, gives notice in writing to the Treasury that he adopts the provisions of this Act; and nothing in this Act shall affect a superannuation allowance payable to any other police magistrate:

Provided that in the application of this Act to the divisional justices of the police district of Dublin metropolis references to the Lord Lieutenant shall be substituted for references to the Secretary of State, and a reference to moneys provided by Parliament shall be substituted for the reference to the Consolidated Fund of the United Kingdom or the growing produce thereof.

[5 & 6 GEO. 5.] *Police Magistrates (Superannuation)* [CH. 74.]
Act, 1915.

A.D. 1915.

2. This Act may be cited as the Police Magistrates (Super- Short title.
annuation) Act, 1915.

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FOR

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